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General Comment

We are at a critical juncture in the development of big data AI in which we may choose how its implementation will impact the rest of society. I believe that now is the time to set a clear precedent that models which are built from copyrighted work may only operate legally with the explicitly granted permission or license of the copyright holders, particularly in areas where the potential applicability of generative models have the capacity to negatively impact the copyright owners through market competition.

We should immediately act to regulate models in such a way that their source data is clearly identified and categorized as private, public domain, or other. It may be worthwhile to explore a statutory license model similar to the music industry.

In addition, regulation is desperately needed to clearly label and identify generative AI products, not only to inform consumer choices, but also to assist in preventing situations where models are trained on the generated product of prior models, which can lead to instability.